

AMENDMENT NO. 1 TO CONTRACT NO. 5963
USE AGREEMENT
BETWEEN
CITY OF CHEYENNE, WYOMING
AND LEVEL 3 COMMUNICATIONS, LLC

Approved as to
form only:

D. White

Date: 9/10/2013

This Amendment No. 1 to Contract No. 5963 Use Agreement ("Amendment") is made between the City of Cheyenne, WY (the "City") and Level 3 Communications, LLC ("Level 3") and is effective this _____ day of _____, 2013 ("Effective Date").

WHEREAS, Level 3 entered into a Use Agreement with the City on or about February 25, 2013, identified as Use Agreement Contract No. 5963 ("Use Agreement"), for limited use of the public right-of-way for the installation of a fiber optic communications systems and to set a fee for that use; and

WHEREAS, the parties now wish to amend the Use Agreement under the terms and conditions contained herein to correct an error in the length of the linear feet of cable described in the Use Agreement on which the fee is based.

AMENDMENT

In consideration of the mutual covenants contained herein, the parties hereby agree to amend the Use Agreement as follows:

1. The number "16,453" in the second line of Section 5 is deleted and replaced with the number "13,656.52."
2. Except as amended herein, all other terms and provisions of the Use Agreement shall continue in full force and effect and may not be further amended unless by written instrument signed by the parties.
3. This Amendment may be executed by the parties in one or more counterparts each of which when so executed shall be an original, but all such counterparts shall constitute one and the same instrument.
4. Upon execution, this Amendment shall be a binding obligation of the parties and is incorporated into the Use Agreement.

IN WITNESS WHEREOF, the parties have duly executed this Amendment as of the Effective Date.

CITY OF CHEYENNE, WYOMING

By: _____
Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

LEVEL 3 COMMUNICATIONS, LLC

By: _____
Danett Kennedy, Sr. Mgr- NIS

WITNESS:

Printed Name: Micki Marlatt-Arledge
Title: NIS Contract Analyst